Board Memo

Meridian Care Breach Governance

Awareness: 2026-07-13T07:35:00Z

1. Confirmed number and notification decision

Confirmed individuals affected across all jurisdictions: 2,430

Notification obligations triggered: YES

2. Confirmed range and why there is a gap

Jurisdiction	Confirmed	Upper Bound	Reason for Gap
EU	620	705	85 individuals are flagged as uncertain. Backup index reconciliation is still pending.
Nigeria	1,280	1,420	140 individuals are flagged as uncertain. Backup index reconciliation is still pending.
California	530	530	No gap. All rows have been confirmed.
Total	**2,430**	**2,655**	

Decision

We should proceed using the **confirmed figures now**.

The board instruction makes it clear that the decision should not wait for perfect certainty. The confirmed figure is already sufficient to trigger the relevant statutory clocks.

The upper-bound figure will be confirmed once the backup index reconciliation is complete and will be included in a supplementary update. It should **not** be used as a reason to delay any notification that has already been triggered.

3. Trigger and deadline summary

Obligation	Authority	Triggered	Deadline (UTC)
DL-001	GDPR Article 33	Yes	2026-07-16T07:35:00Z
DL-002	GDPR Article 34	Yes	No fixed offset
DL-003	Nigeria Data Protection Act 2023, Section 40 and current NDPC guidance	Yes	2026-07-16T07:35:00Z
DL-004	California Civil Code Section 1798.82(a), as amended by SB 446	Yes	2026-08-12T07:35:00Z
DL-005	California Civil Code Section 1798.82(f), as amended by SB 446	Yes	2026-08-27T07:35:00Z

4. Judgment calls made in this assessment

The following points involve **engineering and legal judgment**. They are being documented explicitly so that they are not presented as more certain than the evidence allows.

- **GDPR Article 33 and NDPA Section 40:** Notification is being treated as required regardless of whether the encryption key was acquired. The basis for this decision is that the unencrypted account-credential dataset on its own is sufficient to clear the low-risk threshold for authority notification.
- **GDPR Article 34:** Individual notification is being treated as dependent on the encryption-key assessment. The high-risk basis relies on data that can only be read if the key was acquired.
- **California Attorney General sample notice:** The DL-005 date has been calculated from the relevant rule text but has not been validated against a published test fixture.